Namit vs State Govt. Of Nct Of Delhi on 24 December, 2024

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 4800/2024
NAMIT

Through: Mr. Nitin Chaudh
Sharma, Advs.
versus
STATE GOVT. OF NCT OF DELHI

Through: Ms. Priyanka Dal
SI Bharti Dhondiyal, PS C

CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 24.12.2024 CRL.M.A. 39135/2024-EX.

1. Allowed subject to all just exceptions.

2. The application stands disposed of.

3. This is a petition filed under section 482 of BNSS seeking grant of anticipatory bail to the petitioner in the event of arrest in FIR No.116/2024, dated 11.10.2024, registered at PS Cyber Police station, Shahdara under Sections 319/318(4) of BNS, 2023.

4. Briefly stating the facts are that the FIR was registered on the complaint of Mr. Santosh Kumar/ complainant, whereby it was alleged that one, namely, Mr. Uma Shankar had contacted the complainant regarding renewal of an LIC policy and subsequently cheated the complainant to the tune of Rs 5,85,000/-. When the complainant demanded the return of the money, Mr. Uma Shankar stopped picking calls of the complainant. Hence This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 26/12/2024 at 22:14:03 the present FIR was registered.

5. Mr. Chaudhary, learned counsel for the petitioner states that the petitioner has been falsely implicated in the present case and even though no money has been received by the petitioner, but in order to show the bona fides, the petitioner is paying a sum of Rs. 1.5 lakhs to the complainant (Rs.

80,000/- by way of bank transfer, Rs. 20,000/- in cash and Rs. 50,000/- by Demand Draft bearing No. 468623 dated 07.12.2024 drawn on Indian Bank, Mayur Vihar).

6. Ms. Dalal, learned APP states that it is the petitioner who is the kingpin of the entire fraud and she seeks permission to file a status report highlighting the same.

7. Let the needful be done before the next date of hearing.

8. In the meantime, no coercive actions shall be taken against the petitioner till the next date of hearing subject to the following terms and conditions:

> a. The petitioner shall participate in the investigation and will join the investigation as and when directed by the Investigating Officer (IO); b. The petitioner shall not leave Delhi without prior permission of the concerned IO;
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> c. The petitioner shall provide his mobile number to the concerned IO, which shall be kept in working condition and switched on at all times.

9. List on 28.02.2025.

JASMEET SINGH, J DECEMBER 24, 2024 / (MS) This is a digitally signed order.

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